



Notification Waiver Determination

Tasman Capital – Amberlee Holiday Homes & Accommodation and Woodlands Estate

Acquisition	Tasman Tourism Pty Ltd, as trustee for the Tasman Tourism Trust (Tasman Tourism) applied for a notification waiver in respect of its proposed acquisition of the business and assets of the Trustee for Amberlee Family Trust (Amberlee), as described in the transaction documents provided as part of the application (the Acquisition). As part of the Acquisition, a related land sale contract provides for Tasman Tourism Property Pty Ltd as trustee for the Tasman Tourism Property Trust to acquire the land at 306 Jetty Road, Rosebud, Victoria.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	9 October 2026

Parties to the Acquisition	The acquirer, Tasman Tourism, is an entity within the Tasman Holiday Parks corporate group (THP), being the group of companies and unit trusts which own, develop and operate holiday parks in Australia and New Zealand. THP operates 38 holiday parks in Australia. THP is managed by Tasman Capital Partners (Tasman Capital), a mid-market focused Australian private equity firm with investments across Australia and New Zealand. Tasman Capital does not have any investments in holiday park operators, other than THP. Tasman Capital also has an interest in Serenitas, an over-50's residential land lease community provider that owns a portfolio of land lease communities across Australia. The target, Amberlee, operates a holiday park business at 306 Jetty Road, Rosebud, Victoria 3939, under the trading name "Amberlee Holiday Homes & Accommodation", and a separate residential park business under the trading name "Woodlands Estate" at the same location. The Amberlee Holiday Homes & Accommodation business includes the sale of permanent holiday accommodation, cabins and caravans, as well as a small number of short-term tourist sites and related holiday park facilities. Woodlands Estate is a residential/land-lease community for customers aged over 55, at the same location.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between THP (and its connected entities) and Amberlee in the supply of holiday park accommodation in the Mornington Peninsula region of Victoria, and a very small overlap in Victoria b. there is no horizontal overlap between Tasman Capital (and its portfolio companies) and Amberlee in the supply of residential land lease communities in the Mornington Peninsula region, and a very small overlap in Victoria c. there are alternative suppliers of holiday parks and residential land lease communities in the Mornington Peninsula region and in Victoria more broadly. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act